

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

SHMUEL ZINGER

Plaintiff

Index No.

Date Filed:

SUMMONS

- against -

Plaintiff
designates Kings
County as the place
of trial.

Venue is designated
based
upon PLAINTIFF's
address and that the
transaction upon
which this
action is based took
place in KINGS
COUNTY.

THE CITY OF NEW YORK and
PO STEVEN SINGH and PO PRISCILLA COLON

Defendant.

Plaintiff's
address is:
5817 11th Ave
Brooklyn, N.Y.

-----X.

YOU ARE HEREBY SUMMONED to appear in the Supreme Court of
the City of New York, County of Kings at the Office of said Court at 360 Adams Street,
in the County of Kings, City and State of New York, within the time provided by law
(The law provides that if this summons is served by its delivery to you personally
within the City of New York, you must appear and answer within **TWENTY** days
after such service; or if this summons is served by delivery to any person other than

you personally, or is served outside the City of New York, or by publication, or by any means other than personal delivery to you within the City of New York, you are allowed **THIRTY** days after proof of service thereof is filed with the Clerk of this Court within which to appear and answer) and to file your answer to the annexed complaint with the Clerk; upon your failure to answer, judgment will be taken against you for the sum of \$6,000,000.00 with interest thereon from the day allowed by law together with costs of this action.

Dated: New York, New York
July__ 2018

Bienenfeld Law
Attorney for Plaintiff
450 Seventh Ave
New York, N.Y. 10123
Tel: (212) 363-7701

TO:
City of New York
One Centre Street
NYC NY

PO STEVEN SINGH

PO PRISCILLA COLON

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHMUEL ZINGER

INDEX#

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
PO STEVEN SINGH and PO PRISCILLA COLON

Defendants
-----X

Plaintiff, SHMUEL ZINGER, by his counsel, Saul Bienenfeld, complaining of the
defendants state as follow:

1. Plaintiff, Shmuel Zinger, at all times hereinafter mentioned was and still is a resident of the County of Kings, State of New York.
2. At all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and still is a municipal corporation duly existing by virtue of the laws of the State of New York with the power and authority to carry out municipal functions including the maintenance and operation of the New York City Police Department.
3. Defendant, Steven Singh, shield number 22037, was and still is a police officer employed in and by New York City. Defendant Steven Singh is sued individually and in his capacity as a police officer in and with the City of New York.
4. Defendant Steven Singh was at the time of the acts complained of herein a servant and employee of New York City, and at all times herein was acting under such employment and within the scope of their authority as a police officer for the City of New York.
5. Defendant, Priscilla Colon, shield number 18862 was and still is a police officer

employed in and by New York City. Defendant Priscilla Colon is sued individually and in her capacity as a police officer in and with the City of New York.

6. Defendant Priscilla Colon was at the time of the acts complained of herein a servant and employee of New York City, and at all times herein was acting under such employment and within the scope of their authority as a police officer for the City of New York.
7. On October 31, 2017 within ninety (90) days after the claim herein sued upon arose, a notice of claim in writing, sworn to by and on behalf of the claimant, was duly served on the Comptroller of the City of New York, which notice of claim set forth the names and addresses of the claimants and their attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and the items of damage or injuries claimed to have been sustained so far as then practicable.
8. That more than thirty (30) days have elapsed since the service of said notice of claim and the plaintiffs' claims have not been adjusted or paid.
9. That this action is brought within one (1) year and ninety (90) days from the date of the occurrence.

FIRST CAUSE OF ACTION

10. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "9" above as if more fully set forth herein.
11. On or about October 29, 2017, at approximately 7:50 PM Shmuel Zinger was beaten and unlawfully arrested by Police Officers Singh and Colon at the

corner of 18th Avenue and 53rd Street in Brooklyn New York.

12. At said date and time Shmuel Zinger was lawfully parked in his car by the curb and committing no crimes.
13. Shmuel Zinger was charged with the crimes of Disorderly Conduct, Penal Law 240.20 and Vehicle and Traffic Law § 1225C2A using a cell phone. He spent several hours in jail and suffered the embarrassment of being arrested in front of his community.
14. The criminal case against Shmuel Zinger was dismissed and sealed on June 11, 2018 in Kings County Criminal Court part AP 5.
15. At the aforesaid time and place, defendants Singh and Colon, without any arrest warrant(s), without reasonable or probable cause, without justification, and without authority, wrongfully, unlawfully, maliciously and intentionally arrested plaintiff Zinger.
16. Defendant then forced and compelled plaintiff Zinger to be handcuffed and caused him to be held under arrest and imprisoned against his will. While handcuffing Zinger PO's Singh and Colon beat Zinger about his head and body. Defendants then compelled and caused plaintiff to be taken to a police precinct, where plaintiff suffered the indignity and humiliation of being arrested.
17. Defendant THE CITY OF NEW YORK, through its agents, servants and/or employees acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of plaintiff.
18. At the time of his arrest, plaintiff had committed no illegal act.
19. At the time of his arrests and false imprisonment, plaintiff had not committed nor

attempted to commit any crime.

20. At the time of the arrest of plaintiff defendant THE CITY OF NEW YORK, through its agents, servants and/ or employees knew or should have known, through the exercise of proper police procedure and reasonable investigation that the aforementioned arrest and detentions were false and without probable cause.
21. Said false arrest and false imprisonment caused plaintiff to suffer severe mental distress and anguish, humiliation, physical injuries, legal expenses and damage to reputation. Plaintiff was deprived of his liberty, detained against his will, subjected to an unlawful search and seizure and hindered and prevented from pursuing his customary and necessary activities.
22. As a result of the foregoing, plaintiff Shmuel Zinger demands judgment against the defendants in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

SECOND CAUSE OF ACTION

23. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "22" above as if more fully set forth herein.
24. On October 29, 2017, the defendants did maliciously cause a criminal prosecution to be commenced against plaintiff, Shmuel Zinger, without probable cause and in bad faith.
25. In commencing and continuing said malicious prosecution, the defendants caused the plaintiff, Shmuel Zinger to be falsely charged with the crime of Disorderly Conduct.
26. Plaintiff did not commit any illegal act(s).
27. Plaintiff did not give the defendants probable cause to believe that he had

- committed any illegal act(s).
28. Defendants Singh and Colon in the course of their employment, gave false, misleading and incomplete information in causing said malicious prosecution to be initiated and continued without probable cause.
29. Defendants Singh and Colon, knew or should have known, through the exercise of reasonable care that their statements, affirmations and/or testimony, were false.
30. That the Court on or about June 11, 2018 dismissed all the criminal charges against plaintiff.
31. Said malicious prosecution caused the plaintiff, to incur legal expenses and loss of actual and potential income and to suffer severe physical and mental distress, emotional disturbances and humiliation.
32. The defendants, THE CITY OF NEW YORK, Singh and Colon, acted with malice in causing and continuing the prosecution with knowledge that it could not succeed.
33. As a result of said malicious prosecution, plaintiff had suffered substantial and permanent damages.
34. As a result of the foregoing, plaintiff demands judgment against the defendants in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

THIRD CAUSE OF ACTION

35. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "34" above as if more fully set forth herein.
36. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in selecting defendants Singh and Colon as police officers and improperly training

and supervising defendants Singh and Colon in the skills necessary to exercise their authority as police officers.

37. Prior to and during the acts complained of herein, defendant THE CITY OF NEW YORK knew or in the exercise of their duties should have known the propensity of defendants Singh and Colon to act wrongfully and illegally in the pursuit of and during the course of their duties and functions. Despite this knowledge or their duty to know, defendant THE CITY OF NEW YORK entrusted the power and authority to act as a police officer to defendants Singh and Colon. Such actions constitute gross negligence on the part of defendant THE CITY OF NEW YORK.

38. By reason of said negligence of defendant THE CITY OF NEW YORK, plaintiff has suffered and will suffer emotional, physical and mental distress for which he may require in the future medical and therapeutic care and treatment.

39. By reason of the aforesaid injuries, plaintiff has been prevented from pursuing his customary activities and employment for which he has suffered and will suffer considerable losses.

40. As a result of the forgoing, plaintiff Zinger demands judgment against the defendants in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

FOURTH CAUSE OF ACTION

41. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "40" above as if more fully set forth herein.

42. The actions of the defendants hereto described constitute unlawful arrests and detention all in violation of plaintiff Zinger's civil rights.

43. As a result of the conduct and actions of defendants Singh and Colon who were acting under color of law and who used excessive force, did deprive plaintiff Zinger of his liberty and caused false charges to be lodged against plaintiff and violated the plaintiffs' rights guaranteed by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the Civil Rights Act of 1871, 42 U.S.C. Sections 1981 and 1983 and comparable provisions of New York State Constitution, and New York State Law.
44. As a result of the foregoing, plaintiff Zinger demands judgment against the defendant in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

FIFTH CAUSE OF ACTION

45. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "44" above as if more fully set forth herein.
46. As a result of the foregoing, plaintiff Zinger demands judgment against the defendants for punitive damages in the amount of TWO MILLION (\$2,000,000.00) DOLLARS, so as to deter defendants from the gross, malicious conduct hereinabove described that shocks the public conscience, together with interest, costs and such other and further relief as appears reasonable and just.

WHEREFORE, plaintiff SHMUEL ZINGER respectfully demands judgment against the defendants in the amount of FOUR MILLION (\$4,000,000.00) DOLLARS in compensatory damages and TWO MILLION (\$2,000,000.00) DOLLARS in punitive damages, together with interest, costs and disbursements.

Dated: New York, New York

July 2, 2018

Yours, etc.

SAUL BIENENFELD, ESQ.

Bienenfeld Law

Attorney for Plaintiff

Shmuel Zinger

450 Seventh Ave

New York , N.Y. 10123

(212) 363-7701

To:
City of New York
One Centre Street
NYC NY

PO Steven Singh

PO Priscilla Colon

ATTORNEY VERIFICATION

Saul Bienenfeld, an attorney duly admitted to practice law in the State of New York, under penalties of perjury, affirms the following:

That deponent is the attorney for the Plaintiff(s) in the action within; that deponent has read the foregoing **COMPLAINT** and knows the contents thereof; that the same is true to the deponent's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters believes it to be true and the reason this verification is not made by Plaintiff(s) and is made by deponent is that Plaintiffs is/are not presently located in the county where the deponent-attorney maintains his office.

Saul Bienenfeld

SAUL BIENENFELD